

22STCV18437 22STCV18437

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Case Number: 22STCV18437 Hearing Date: August 24, 2026 Dept: G

Motion to Determine Reasonable Attorney's

Fees and Allocate Litigation Costs filed by Nonparty

Elizabeth Esparza

Respondent: NO OPPOSITION

TENTATIVE RULING

Motion

to Determine Reasonable Attorney's Fees and Allocate Litigation Costs filed by

Nonparty Elizabeth Esparza is DENIED.

BACKGROUND

This is a negligence action against a public entity. On October 12, 2021, employees of defendant West Covina Unified School District (the District) allegedly instructed plaintiff Tiffany Quintero (Quintero), a minor, to participate in a photograph, requiring students to pose on top of each other's shoulders. Quintero allegedly fell from a height and impacted her head, face, and jaw onto hardwood flooring and lost consciousness. The District's employees allegedly failed to render aid or call emergency services. Nonparty Elizabeth Esparza (Esparza), Quintero's mother and guardian ad litem, allegedly arrived on scene and transported Quintero to the hospital, which treated her for a maxillary jaw fracture, tooth fracture, tooth extrusion, and tooth intrusion.

On June 3, 2022, Quintero filed the Complaint, alleging causes of action for (1)–(2) negligence; (3) negligent supervision; (4) negligent hiring, training, and retention; and (5) dangerous condition of public property.

On March 27, 2026, the parties informed the court that they settled the case. On June 11, 2026, the court dismissed the action with prejudice.

On June 26, 2026, Esparza, the individual appointed as guardian ad litem, filed this motion for an order limiting attorney's fees and for reimbursement of litigation costs, which is unopposed. The minor, Plaintiff Quintero, reached the age of majority on November 5, 2022

The motion is set for hearing on August 24, 2026.

ANALYSIS

Esparza seeks an order halting the disbursement of settlement proceeds, limiting their attorney's fees to 25% of the gross recovery, and providing reimbursement for Esparza's advanced litigation costs. For the following reasons, the motion is DENIED.

Legal Standard

A court has the authority to "amend and control its process and orders so as to make them conform to law and justice." (Code Civ. Proc., § 128, subd. (a)(8).) When jurisdiction is conferred on a court, all the means necessary to carry its jurisdiction into effect are also given, including the authority to amend judgments and orders. (Code Civ. Proc., § 187; see *McClellan v. Northridge Park Townhome Owners Assn., Inc.* (2001) 89 Cal.App.4th 746, 753–756.)

Discussion

Here, the court appointed Esparza as Quintero's guardian ad litem on July 15, 2022 because Quintero was still a minor. (See 7/18/2022 CIV-010, ¶¶ 1–6; see also Code Civ. Proc., § 372, subd. (a).) Quintero reached the age of majority on November 5, 2022, extinguishing Esparza's statutory basis for serving as the guardian ad litem. (See 7/18/2022 CIV-010, ¶ 4.) The court previously found that Esparza could not substitute into this case for Quintero's attorney and could not appear in pro per. (See 6/26/2026 Min. Order, p. 2; see also *McClintock v. West* (2013) 219 Cal.App.4th 540, 549, noting that "[a] guardian ad litem is not a party to an action, but merely the representative of record of a party," italics removed.) For the same reasons stated in the court's previous ruling denying the ex parte application for substitution of attorney, the court finds that Esparza lacks standing in this case.

Therefore, the motion to determine reasonable attorney's fees and allocate litigation costs is DENIED.

CONCLUSION

For these reasons, the motion to determine reasonable attorney's fees and allocate litigation costs is DENIED.